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Joshua Newman & Martha Widdi Nurfaiza

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Policy design, non-design, and anti-design: the regulation of e-cigarettes in Indonesia

Joshua Newman ^a and Martha Widdi Nurfaiza^b

^aCollege of Business, Government and Law, Flinders University, Adelaide, Australia; ^bDirectorate General of Customs and Excise, Ministry of Finance, Republic of Indonesia, Jakarta, Indonesia

ABSTRACT

In this article, we propose a typology of policy design and non-design, with special attention to a category of policy making which we term, “anti-design”. We argue that contrary to the established literature, the opposite of design is not politics, but rather, a disconnect between problems, interventions, and outcomes. This disconnect can be caused by political forces but also by non-political factors such as incompetence, corruption, or global economic trends. We use an attempt by the government of Indonesia to regulate e-cigarettes to illustrate a scenario in which design activities are virtually absent. Making the distinction between design and the various forms of non-design is an important step in understanding the conditions that enable or impede rational mechanisms in the policy process.

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Introduction

The design of public policies has always been a contentious issue among scholars, and, to a lesser extent, among practitioners. Historically, the key debates have been about whether policies can be systematically designed in a wholesale fashion to resolve major policy issues, or whether it is safer and more realistic to make small changes to existing policies instead (Lindblom 1959; Dror 1964); whether policies are designed (or should be designed) primarily “from the top down” by senior policy makers or “from the bottom up” by the street-level public servants who implement the policies (Linder and Peters 1987); and whether governments retain the sovereign authority to formulate public policy as they see fit or whether the forces of globalization on the one hand and an increased reliance on domestic network actors on the other have diminished the capacity of the state to control policy decision making (Rhodes 1996; Knill and Lehmkuhl 2002). More recently, debates in this area have questioned the fundamental ability of the policy-making system to operate in a linear-rational or instrumental manner at all – that is, whether policy design, or evidence-based policy, is in fact possible or even desirable (Newman 2017).

Because the scholarly debates have explicitly focused on design, alternatives to design have not been investigated in nearly as much detail. More importantly, alternatives to policy design have not been properly defined. Howlett and Mukherjee (2014, 61) define “non-design” as policy formulated by “purely interest-driven or political motivations and logics”, but this leaves out plausible scenarios where policies are neither designed nor politically motivated (and it also ignores the possibility that some policies might be carefully designed for demonstrably political purposes). Many authors (e.g. Cairney 2016; Colebatch 2018) argue that public policy is not – and cannot be – a rational scientific enterprise, and so all policy making is non-design. Again, the shortcoming of this approach is that it does not account for various distinct forms of non-design that ought to be considered separately. Ultimately, while several well-developed definitions of policy design have been put forward (e.g. Howlett 2011; Mintrom and Luetjens 2016; Peters 2018), the various forms of policy making that do not constitute “design” have not been clearly articulated.

In this article, we propose a typology of policy design and non-design, with special attention to a category of policy making which we term, “anti-design”. According to a consensus of previous observers, the key characteristic of policy design is the selective use of government interventions to connect policy problems with policy outcomes. Given this understanding, we argue that contrary to the established literature, the opposite of design is not politics, but rather, a disconnect between problems, interventions, and outcomes. This disconnect can be caused by political forces but also by non-political factors such as incompetence, corruption, or global economic trends. Using the example of an attempt by the government of Indonesia to regulate e-cigarettes, we show that it is possible for some policies to be not only “not designed” but in fact the virtual opposite of policy design and design principles as they have been described by previous authors. Making the distinction between design and the various forms of non-design is an important step in understanding the conditions that enable or impede rational mechanisms in the policy making process.

Policy design

In some ways, a stark divide is developing between those who believe that policy design is possible and others who argue that the political nature of policy making rules out the possibility of design entirely. These views occur along a spectrum, with Peters asserting at one end that “At some level, all policymaking is policy design” (2018, 4) and Colebatch (2004) at the other end arguing that even the term “policy” is a constructed, and not very accurate, account of the activities that governments do. Other points along the spectrum are evident: Howlett and Mukherjee (2014) argue that while policy design is possible, so are other “non-design” alternatives; according to Dryzek and Ripley (1988), policy design is possible, although even when it is attempted there is no guarantee that design will be successfully achieved; and Hertin et al. (2009) argue that policy design is an ideal form of policy making that rarely represents what actually happens in the decentralized and political forum of governance.

In addition, there is a normative aspect to this debate, with some supporters arguing that designed policies will lead to better social outcomes (Ingraham 1987; Mintrom and Luetjens 2016) and opponents arguing that a design approach to public policy can be

anti-democratic, because an appeal to neutrality can in reality obscure value positions and hinder democratic political debate (Hansen and Triantafyllou 2011). Another theme among proponents of policy design is that better designed policies will be more likely to achieve their objectives, whatever those might be and notwithstanding the value of the outcomes produced by that particular policy (Turnbull 2018, 358) – although again, others have questioned the ability of governments to achieve objectives through design processes at all (Cairney 2016). As above, the normative arguments in this area are divided, in this case between those who believe that design is desirable and will improve policy outcomes, and those who question the value to democratic governance of what they see as being an unavoidably flawed approach to public policy.

These debates are unlikely to advance our understanding of the role that design can play in policy making unless a clearer presentation of the differences between design and non-design is developed. A fully developed account of these differences is beyond the scope of this article. However, we intend to make a contribution to this research agenda by outlining a brief typology of policy design and non-design, along with an articulation of a special category of non-design which we refer to as “anti-design”. This distinction is an important one because it challenges the design-versus-politics approaches that are dominant in the policy design scholarship to date.

Surprisingly, there is little disagreement on the general definition of policy design. Some of the finer points have been debated, such as how much attention should be given to instrument selection (Howlett 2011; Peters 2018), but the general principles of policy design appear to be agreed upon by most scholars, no matter where they site themselves in the various debates. Policy design is understood by most observers as a rational, purpose-driven, and roughly linear (or cyclical) process connecting policy goals with policy outcomes. As described above, some authors believe that policy design is achievable and is worth aspiring to, while others see it as an impossible ideal that can never (and to some, should never) be reached – but in general most authors agree on what policy design might look like.

Consider the following definitions of policy design:

Public policy design involves conscious invention, development, and application of patterns of action in problem resolution. (Dryzek and Ripley 1988, 705)

... to what extent problem causality, causal links, range of solutions, choice of strategy, and match between strategy and available resources have been considered and analyzed. (Ingraham 1987, 614)

... a rational-instrumental view of public policy making. This view corresponds with a linear model of problem solving ... This process normally begins with the identification of a policy problem or objective, runs through an analysis of the main options and their respective impacts, and culminates with an identification of the ‘best’ one. (Hertin et al. 2009, 1186)

... the deliberate and conscious attempt to define policy goals and connect them in an instrumental fashion to instruments or tools expected to realize those objectives. (Howlett and Mukherjee 2014, 58)

... doing analysis and giving advice on the appropriate choice [of government intervention], based on mobilising knowledge for the systematic identification and comparison of options. (Colebatch 2018, 369)

While some of the authors quoted above are supportive of policy design and others are critical, they all agree on the rational, purpose-driven, and linear nature of the design concept.

Furthermore, nearly all observers characterize policy design as an attempt to connect policy goals with policy outcomes, through the strategic selection of instruments. So again, no matter where one positions oneself in the various debates, policy design is nearly always seen as a linear pathway:

Policy goal → intervention → outcome

If evaluation of outcomes and the use of evaluation to inform future policy is included, then the process becomes a “policy cycle” (Howlett, Ramesh, and Perl 2009; Althaus, Bridgman, and Davis 2017).

The first step in the design process would therefore seem to be to develop a policy goal. There is a tendency to conflate policy problems with policy objectives (e.g. Hertin et al. 2009, 1186), however these are not equivalent. For example, income inequality might be seen as a policy problem. One possible goal (among many) that relates to this problem might be to reduce inequality by 5%. One or more interventions can then be selected from among multiple options (e.g. changes to the tax regime, direct subsidies, investment in training and education) in order to achieve this goal. Admittedly, in some cases – for example, the elimination of homelessness or the eradication of a communicable disease – the goal of a policy might be to “solve” the policy problem it relates to. But in many areas, such as crime rates, traffic management, and public health, policy goals can seek to achieve some smaller objective in addressing a broader policy problem.

Therefore, it may be more useful to conceive of the policy design process this way:

Policy problem → policy goal → intervention → outcome

Consequently, the ideal form of policy design would be: a policy problem is identified, a policy goal is decided, policy instruments are selected, and the policy outcome achieves the policy goal precisely as articulated.

Variations to this ideal form of policy design can be approached systematically. At the outcome stage, outcomes may not achieve the policy goal completely, but rather, to greater or lesser degrees. In other words, outcomes are available in which some achievements are “better” than others. At the extreme end, policy outcomes would make no contribution at all toward achieving the policy goal. For instance, in an ideal scenario, changes to the tax regime might reduce income inequality by 5%, as intended. In a non-ideal scenario, changes to the tax regime might reduce inequality by only 4% or 3%, or might reduce inequality for some groups but widen the gap for others. There is also the possibility that changes to the tax regime might not affect inequality at all, or even increase inequality instead of reducing it.

The other stages of the ideal policy design process can be thought of similarly. Policy instruments can be appropriate or inappropriate, to varying degrees, all the way down to a scenario where the selected instruments do not have any effect on the achievement of the policy goal whatsoever. Policy goals can be decided and clearly articulated, or they can be ambiguous to greater or lesser degrees, or they can be not decided at all. Policy problems can be identified and articulated or not identified at all.

Clearly there are numerous scenarios and it would be impossible to describe all of them here. However, the benefit of thinking about policy design in terms of deviation from an ideal form is that it becomes evident very quickly that alternatives to design do not all qualify as politics. Political bargaining and coalition-building can certainly disrupt the link between policy problems and outcomes that characterizes the ideal design scenario, but other mechanisms can also be in play. If a policy problem was incompletely defined, or if the wrong instruments were selected, or if a policy goal was not clearly articulated, this could be the result of incompetence, or shifting priorities, or exogenous factors like advances in technology or structural changes to the economy. Likewise, policies can be overtly political and yet still follow all the steps of the design process. Newman and Bird (2017), for instance, describe examples from Canada and Australia in which newly-elected governments pursued carefully planned policies with the intention of shaming their opposition parties. With policy design defined, as above, as the selection of interventions to link policy problems with policy outcomes, it is entirely possible for the problem at hand to be a political or partisan problem, without violating the process of design.

Consequently, it may be more logical – and more constructive – to think of policy design and its alternatives in terms of deviation from the ideal policy design scenario, and then to consider what kinds of disruption occurred, what may have caused those disruptions, and what kind of decision making activities they occurred in. Policy design might then be understood as a spectrum, rather than as a reason-versus-politics dichotomy. The spectrum would range from ideal design, where policy problems are directly linked to policy outcomes through the intentional selection of appropriate interventions, to its logical opposite, where policy problems, interventions, and outcomes are completely disconnected and design activities are not apparent.

To this end, we propose a number of categories of policy making scenarios. These categories are intended to illustrate a systematic way of thinking about policy design and alternative scenarios but are not meant to be exhaustive or perfectly adjacent to one another. The typology is summarized in [Table 1](#).

Table 1. A typology of policy design and non-design.

Mode of policy making	Characteristics
Ideal policy design	- Problems and goals are clearly defined and articulated. - Instruments are selected systematically and purposively to address problems and achieve goals. - Outcomes achieve goals as intended.
Functional policy design	- Problems and goals are clearly defined and articulated. - Instruments are selected systematically and purposively. - Outcomes do not achieve goals as intended.
Disrupted policy design	A major disruption interferes with the link between policy problem and policy outcome. Examples: - Policy problem and goal are defined but instruments are not selected systematically. - Policy problem is identified, policy goal is defined, instruments are selected, and then policy goal is subsequently revised without change to instrument selection.
Non-design	All design activities (problem definition, goal setting, instrument selection, outcomes) are present but they are not clearly or linearly linked.
Anti-design	Intervention is pursued but ... - problem is not defined - goals are not set - no purpose is apparent

(1) Ideal Policy Design

Authoritative decision makers within government, or in offices of authority to which power has been delegated by government, identify and define a policy problem. Next, a policy goal is formulated and is clearly articulated. Policy instruments are selected and implemented. The implemented interventions produce outcomes that achieve the policy goal as articulated and contribute in some way toward addressing the initial problem.

(2) Functional Policy Design

A policy problem is identified, a policy goal is articulated, and instruments are selected. However, the outcomes of the implemented policy do not completely achieve the policy's objectives. There could be any number of reasons: for instance, the policy area could be extremely complex or newly emerging, and the available information on options for government intervention may not be adequate. Giest (2015) analyzes government efforts to build private sector innovation clusters (akin to California's Silicon Valley), and finds that independent facilitators can help support the expansion of these clusters. But as this is a relatively new area of public policy, optimal designs are not yet known. Some jurisdictions (Giest's case studies include the United States, the European Union, and Singapore) have used facilitators in different ways and have consequently experienced different levels of success.

Incompetence can also be a factor that interferes with policy design. In a particularly compelling account of incompetence in local service delivery, van der Hoek (2010) describes how a municipal government in the Netherlands overspent on procurement for transport services for people with disabilities by nearly €650,000 (or about 36%) and provided more than double the capacity required. In addition, the service was delivered late and the whole ordeal resulted in a conflict with a neighbouring municipality. The detailed analysis provided by van der Hoek demonstrates that while the general problem, the policy goal, and the selection of instruments followed the design process fairly well, the negative outcome that ultimately occurred resulted from a lack of experience and expertise in procurement processes on the part of elected council members, and insufficient support from administrators.

(3) Disrupted Policy Design

A major disruption occurs in the design process that severs the direct link between policy problem and policy outcome. The disruption can occur at any point in the process and can stem from a variety of sources. For example, the United States has historically had high rates of teenage pregnancy as compared to other developed countries (Centers for Disease Control and Prevention 2011). In the 1990s, the federal government committed to funding sex education programmes that would be delivered by state government departments to help reduce the teen pregnancy rate. However, political motivations at the federal and state level contributed to a dogmatic emphasis on abstinence-only education programmes, to the extent that for many years sex education programmes that discussed contraception were not eligible for federal funding (Santelli 2006; Raymond et al. 2008). Research has demonstrated the inadequacy of abstinence-only sex education in

reducing teen pregnancy rates, including at least one study that suggests that abstinence-only programmes are associated with higher rates of teen pregnancy (Stanger-Hall and Hall 2011). In this example, a policy problem was clearly identified, a goal was articulated, but then political considerations resulted in the selection of a demonstrably unsuitable intervention.

(4) Non-Design

Policy making activities that could be aspects of a design process are completely uncoupled. Policy problems, goals, instruments, and outcomes appear but they are not directly linked. The process is not linear, rational, or purpose-driven and the sequence of activity is not in the same order as it would be in a design example (for instance, instruments may be selected before the problem is defined or before goals are determined).

Examples of non-linear decision making abound and could fill many volumes of text. More importantly, there is now an established school of public policy scholarship, dating back to the 1970s, that maintains that all policy making is non-linear and therefore constitutes non-design (Cohen, March, and Olsen 1972; Strassheim and Kettunen 2014; Cairney 2016).

(5) Anti-Design

Interventions are pursued but no resemblance to design activities is evident. Policy problems are not defined. Policy goals are not articulated. Policy outcomes are irrelevant because they cannot be linked to any purpose.

Anti-design: the regulation of e-cigarettes in Indonesia as an illustrative example

The typology proposed in the previous section distinguishes between non-design, in which design-like activities are pursued but not in a linear or rational manner, and anti-design, in which government intervention occurs but there is no resemblance to design activities whatsoever. In an anti-design mode of decision making, it is impossible to impute any kind of instrumental purpose to the government interventions that are being pursued.

We propose two key criteria that set anti-design apart from other kinds of decision making:

- (1) There is no instrumental purpose to which the chosen intervention can be attributed.
- (2) There are other possible interventions in the same policy space that can be used to achieve some imagined policy goal (in other words, policy design is possible in this policy area).

The following discussion on the regulation of e-cigarettes in Indonesia is intended to further illustrate the concept of anti-design. While Indonesia is a developing country, it is not a failed state. The central, provincial, and local governments have substantial agency and decision making power in numerous areas of public policy. There is an entrenched bureaucracy tasked with implementing policy (Tjiptoherijanto 2007), and

there have been successful efforts to counter corruption (Schutte 2012). We are not suggesting that all Indonesian policy making is anti-design. However, this particular case presents a faithful demonstration of anti-design characteristics.

Electronic cigarettes, also known as e-cigarettes, are battery-operated devices that deliver vapour for inhalation by the user, by heating a liquid solution mainly composed of propylene glycol, glycerine, flavouring agents, and often nicotine. Vaping, the act of inhaling e-cigarette vapour, mimics behavioural and sensory elements of cigarette smoking: smoke-like vapour is emitted during vaping and its hand-to-mouth repetitive motion closely resembles smoking. Despite these aesthetic similarities, e-cigarettes contain no tobacco and there is no combustion involved.

Since their introduction, e-cigarettes have experienced rapid market penetration worldwide. This surging popularity has generated widespread debate regarding whether or not to regulate the product or its industry (Newman 2019). Considering the scientific uncertainty about the extent of merit and harm of e-cigarettes, as well as the complete absence of quality control in production and manufacturing, there are numerous compelling reasons for governments to explore regulation in this policy area.

From a health perspective, a growing body of research continues to demonstrate that e-cigarettes pose a number of health risks, and there are likely also long-term risks that are not yet known. Chun et al. (2017), for instance, identify a number of chemicals commonly found in e-cigarette vapour, such as diacetyl and cinnamaldehyde, that have been shown to have harmful effects when inhaled in other circumstances. Rubinstein et al. (2018) found significantly higher levels of toxic organic compounds, such as acrolein and acrylamide, in teenagers who vaped as compared to a never-vaping, non-smoking control sample. And Verhaegen and Van Gaal (2017) found that vaping has comparable cardio-metabolic side effects as smoking, including effects on weight, glucose, and body fat distribution.

In contrast to this negative outlook, a number of studies have argued that even considering possible health hazards, e-cigarettes are very likely to be significantly less harmful than tobacco cigarettes, and should therefore be promoted as an alternative to smoking (Marlow 2014). However, other studies have suggested that e-cigarettes are not an effective tool for smoking cessation, as people who use both cigarettes and e-cigarettes tend to move back to exclusively smoking (e.g. Caponnetto et al. 2014). The general potential for e-cigarettes to act as a gateway to smoking, as well as the broader social risk of a “renormalization” of smoking occurring as a result of widespread uptake of e-cigarettes, are not yet properly understood (Cataldo et al. 2015; McKee and Capewell 2015).

Most importantly, in the e-cigarette industry there is virtually no quality control over manufacturing standards, child safety, or potential harms to the environment. Numerous studies have documented the extremely poor ingredient labelling practices of e-cigarette manufacturers (Cheah et al. 2014), the high likelihood of unintended chemical contaminants in e-cigarette products (Hess et al. 2017), exploding batteries (Nicoll et al. 2016), and risks to the environment from uncontrolled disposal (Chang 2014). In the absence of regulation, these harms remain unchecked.

In 2018, Indonesia began its intervention in the e-cigarette market by levying an excise tax on e-cigarette liquid. By international standards, excise tax is an unusual first step in regulating e-cigarettes. Global practices tend to begin with controls on distribution, sale, advertising, vape-free areas, and age restrictions prior to deciding whether to tax e-

cigarettes (Kennedy et al. 2017). Indonesia, by contrast, had no laws or regulations governing e-cigarettes in 2018. Although at that time there was a ministerial decree of trade governing administrative and technical requirements for e-cigarette importation, there were no restrictions on the circulation of e-cigarette products into or within the country, the Indonesian Food and Drug Agency had not issued any recommendations for regulation, and there were no laws preventing e-cigarette sales to minors or prohibiting vaping in public places. In addition, Muslim authorities in Indonesia had not yet rendered any ruling regarding vaping, despite existing religious restrictions on tobacco smoking (Widyaningrum and Yu 2018).

The Indonesian policy context surrounding tobacco and related industries is unique. Indonesia has one of the highest rates of smoking in the world, but it also has economically relevant tobacco farming and cigarette production industries, and the government collects significant revenue from cigarette taxes. Consequently, apart from excise tax, general regulation on conventional tobacco cigarettes is lax (Amul and Pang 2018a). Therefore, it is not surprising that an Indonesian intervention in the e-cigarette industry would also entail taxation but not much regulation.

However, the details of the tax were unusual. Unlike other excise taxes in Indonesia at the time, the e-cigarette tax was *ad valorem* rather than per unit, and at 57% of retail price, was set at the highest level of excise tax allowed under Indonesian law. By comparison, in Indonesia in 2018, tobacco cigarettes were taxed at an average rate of about 44.7% (Bigwanto 2019). Furthermore, the e-cigarette tax was levied on consumable material only, and thus was for some unknown reason applied to e-liquids and disposable e-cigarettes but not to rechargeable e-cigarette devices. And lastly, the taxability depended on whether the product contained nicotine and whether it was derived from tobacco, which would make compliance confusing and difficult.

The international evidence on the effects of excise taxes on cigarettes and e-cigarettes indicates that these taxes are most effective in suppressing consumption. Generally, excise taxes are used to dissuade people from consuming certain products that produce high social costs, such as tobacco products and alcoholic beverages (OECD 2001). Cigarettes have been shown to have a high price elasticity of demand, thus small increases in price create a large drop in cigarette demand (Chaloupka et al. 2000). A study by Huang, Tauras, and Chaloupka (2014) suggests that e-cigarettes may be even more responsive to price changes than tobacco cigarettes.

Empirical evidence from the United States supports the notion that excise taxation on e-cigarettes reduces consumption. For example, Minnesota introduced a tax on e-cigarettes in 2013, at 95% of wholesale price. Consequently, in Minnesota in 2014–2015, e-cigarette products experienced a 21.5% drop in total unit sales, while nationally, e-cigarette sales rose 14.4% in that time (Marynak et al. 2017, 98). However, Minnesota also dramatically increased its excise tax on conventional cigarettes at the same time, resulting in a 30% rise in the price of tobacco cigarettes. An analysis by Amato and Boyle (2016) shows that in the early days following the two tax increases, sales of e-cigarettes spiked as some smokers turned to vaping. But shortly after, e-cigarette sales dropped precipitously, as the high cost of vaping drove users back to smoking tobacco. This outcome corroborates other international research suggesting that cigarettes and e-cigarettes are at least partially substitutable to one another, especially through price mechanisms (Grace, Kivell, and Laugesen 2015).

Excise taxes can also be used to generate revenue. In most jurisdictions, tobacco excise taxes are unsustainable, because increases in taxes will eventually lead to declining tax revenues in the long run, due to the tax-induced reduction in sales (World Health Organization 2010). This is especially true for e-cigarettes in particular, because of their substitutability with tobacco cigarettes. When the price of e-cigarettes goes up, vapers – who are overwhelmingly current or former smokers (Dockrell et al. 2013) – will simply revert to smoking. This outcome has already been evident in the US states where excise taxes have been implemented (Amato and Boyle 2016).

It is therefore unclear what the 2018 Indonesian excise tax on e-cigarettes is meant to achieve. According to the Director General of Customs and Excise, the goal of this intervention was to make e-cigarette products unaffordable for children, given the growing number of school-age vapers (Gumelar 2017). However, Indonesia's weak record on tobacco regulation suggests that the government is not very interested in reducing consumption to curb negative health effects related to smoking, and given the size of the smoking problem in Indonesia and the uncertainty regarding the health impact of vaping, controlling e-cigarette consumption for public health reasons would be absurd. Also, imposing an excise tax to curb youth consumption of e-cigarettes without legislating age restrictions on purchasing, as the Indonesian government has done, does not make sense from a regulatory perspective.

Although excise tax alone may not be the most effective way to prevent young people from experimenting with vaping, evidence from other jurisdictions indicates that this tax will most certainly reduce overall consumption of e-cigarettes. However, as a policy objective, it is unclear why the Indonesian government might want to do this. It might be logical to suppress the e-cigarette industry so as to favour the traditional tobacco industry – except that the tax is only levied against e-cigarette products that contain nicotine derived from tobacco. And in any case, the sheer size of Indonesia's tobacco industry, the country's existing world-high level of cigarette addiction, and the established tendency of dual cigarette/e-cigarette users to revert to exclusively smoking render it unlikely that e-cigarettes would present any serious threat to the Indonesian tobacco economy.

A more compelling narrative is that the plan to levy excise taxes on e-cigarettes is a solution in search of a problem. The Indonesian government has had a fascination with excise taxes for a number of years, especially since they are easier to impose and enforce than other forms of taxation, and meet with lower resistance from taxpayers. Excise tax is seen as an attractive source of revenue in Indonesia, with national targets being set and exceeded (Cipto 2018), and with still further room to increase taxes up to international benchmark levels (Jati 2017).

The obvious target for excise taxation in Indonesia is tobacco, because high smoking rates ensure a vibrant retail sales economy and consequently, a large tax base. However, tobacco excise taxes have neared their limit in terms of profitability in recent years. Firstly, 97% of excise revenue in Indonesia presently comes from cigarettes (Directorate General of Customs and Excise 2017), signifying a high level of dependence on one industry for revenue. Secondly, existing tobacco tax rates are already high, and it has been suggested that further increases in tobacco taxes would accelerate the growth of a black market (Agung 2012). Thirdly, the increasingly aggressive campaign against tobacco, such as a stronger push to ratify the Framework Convention on Tobacco Control, may pose a threat to the income flow from tobacco products in the future (Purwanto 2015).

Since policy options to raise excise revenue through intensification may not deliver favourable outcomes in the long term, the Indonesian Ministry of Finance developed an “extensification” plan instead. As elaborated in the Blueprint of the Directorate General of Customs and Excise 2016–2018, the government would investigate potential new objects for excise tax. This involved conducting intensive discussions with academics, legal experts, and practitioners in the field of excise, in order to review changes to regulations (Directorate General of Customs and Excise 2017). Taxes on a variety of products, by-products, and industries were explored, such as carbon emissions, sugar-sweetened beverages, plastics, fuel, and cement, but ultimately opposition from various stakeholders and the sectoral ego of line ministries hindered policy development in these areas (Ardhian 2016; Bayu 2017; Suwiknyo 2018).

E-cigarettes were seen as a softer target. Resistance from industry was low, mainly because retailers saw the advent of excise tax as a legitimization of the market (Movanita 2018). Bureaucratic barriers, present for other products in the form of arduous rules for new government regulations, were bypassed by placing e-cigarettes under the wing of tobacco products, which already had an existing regulatory framework. Rules for excise taxes on e-cigarettes were then easily imposed through a Ministerial Decree of Finance (#146/PMK.010/2017, Excise Taxes on Tobacco Products), in which e-cigarette liquid was categorized as “tobacco extract and essence” and incorporated into the “other tobacco derivatives” group, along with snuff and chewing tobacco.

In short, the objective of the Indonesian government in this instance was to search for a vice to which they could apply a new set of taxes. After other options were delayed due to opposition from industry players, e-cigarettes emerged as a good candidate, especially because loopholes in legislation made it easy to set up a new tax regime in this area. Ostensibly, the policy goal should have been to use this tax to establish a new revenue stream, but evidence from the United States readily demonstrates that the natural unsustainability of excise taxes in this area and the high sensitivity of e-cigarettes in particular to changes in price make it impractical to use taxes as a serious source of revenue. A design approach, in which a policy problem is identified, a policy goal is formulated, various options are considered and then instruments are selected to achieve the goals, has not been applied in this example. Furthermore, no elements of the design approach, beyond the simple selection of an intervention, are even apparent.

More strategic efforts at intervention in the e-cigarette industry have appeared in other jurisdictions, signifying that a design approach is possible. Singapore and the United Kingdom, for instance, present two different examples of policy making in this area in which instrumental purpose is more clearly apparent.

Even before the advent of e-cigarettes, Singapore was already known for its strong tobacco control laws and consequent low smoking rates (Amul and Pang 2018b). With the emergence of e-cigarettes, these regulations were toughened with extreme measures of prohibition. Under the Tobacco Act, the importation, distribution, and sale of e-cigarettes are strictly prohibited, with fines of up to SGD\$10,000 (USD\$7,250) and penalties of up to 6 months in jail applied to first-time offenders, and double those penalties for repeat offenders (Ministry of Health and Health Sciences Authority 2016). Some jurisdictions, such as Canada and Australia, have in principle banned e-cigarettes, but lax or complicated enforcement mechanisms have permitted a retail industry to thrive (Newman 2019). In Singapore, however, the government has proactively enforced its prohibition

regime. For example, from April 2014 to March 2017, the Health Sciences Authority investigated around 15,000 cases of smuggling and illegally selling e-cigarettes (Tan 2017). Raids have led to arrests, confiscation of products, and penalties for offenders (Health Sciences Authority 2016a, 2016b). In this case, the policy goal is clearly to limit the use of e-cigarettes in Singapore, while tough penalties and proactive law enforcement are the policy instruments selected to achieve this goal. The strategy of tight government control, coupled with high costs or harsh penalties, is concordant with general Singaporean policy choices, especially in the area of tobacco control, but also in traffic management (Han 2010), vandalism (Rajah 2012), and public demonstration (Ortmann 2012).

The United Kingdom has taken a different approach, but one that is also purpose-driven. Starting in 2015, the overarching goal of e-cigarette-related policy in England and Scotland, for instance, was to make use of e-cigarettes to reduce tobacco smoking (Public Health England 2016a; NHS Health Scotland 2017). To this end, taxes on e-cigarettes were deliberately lower than those on tobacco cigarettes (Department of Health and Social Care 2018), vaping was allowed in some public places where smoking was not (Public Health England 2016a), and restrictions on advertising e-cigarette products on television, radio, and in print were far less prohibitive than they were for tobacco (Neville 2015). In general, public policy in this area was designed to “encourage smokers to try vaping” (Public Health England 2016b) in order to reduce the total prevalence of smoking in the country.

The contrast between the Indonesian excise tax and the policies implemented in Singapore and the United Kingdom is conspicuous. Although different strategies were pursued by authorities in Singapore and the United Kingdom, in both examples a clear objective is discernible, whereas in the Indonesian case no such objective is apparent. We are not implying that e-cigarette policy necessarily followed a linear design process in either Singapore or the United Kingdom (although it may have), but rather that elements of design were clearly present in the e-cigarette regulatory policies that were pursued in these two countries. In the Indonesian case, while an intervention was pursued, the lack of a clear policy objective and strategic selection of policy instruments is mainly absent.

Discussion and conclusion

Despite a fair amount of polarization in the scholarship on policy design, most authors agree on the rational, linear nature of the design concept. Policy design is understood by many as a rational, politically neutral process of selecting an appropriate public action to address some perceived policy problem. To date, the debates in the area have centred on whether policy design happens or does not happen, can it be achieved at all, or, from a normative perspective, should design even be pursued in the first place.

In most of the literature, the opposite of “design” has been assumed to be “politics”. That is, the opposite of rational-logical design activities is often described in terms evoking partisanship, ideology, religion, and coalition-building (e.g. Howlett and Mukherjee 2014, 64). However, as the example of Indonesia’s first attempt to regulate e-cigarettes demonstrates, the opposite of design is not politics, but rather, anti-design – the complete absence of a purpose-driven design process and its associated activities. Multiple modes of decision making are theoretically possible, and deviations from the ideal design process are not necessarily due to political considerations. Anti-design can result from political or non-political causes.

At present, alternatives to design have not been investigated nearly as frequently or in as much depth as has policy design. If the scholarly debates are to be advanced, a better understanding of alternatives to design must be achieved. For instance, if policy design is to be improved, or if it is to be pursued more often, the barriers and enablers of design activities must be identified. Assuming that political considerations are the main barrier to design activities is not a helpful approach in this regard; as Cairney (2016) and others note, policy making is inherently political, and it would be impossible or even undesirable to eliminate this aspect of the policy process. Our contention is that it is possible to envision an ideal form of policy design and then to consider how a particular policy process has deviated from the ideal, in order to understand better whether or not, and how, policy making can be improved.

In this case study, the Indonesian government enacted national legislation to tax some e-cigarette products at a rate higher than the current tax rate for tobacco cigarettes. The nascent Indonesian e-cigarette industry was small at this time, especially when compared to the enormous domestic tobacco economy and other smoking-related policy issues, and was therefore a low-profile and low priority policy area, with little political attention. Furthermore, international examples from the United States, United Kingdom, and Singapore could have supplied easily-obtained information on the outcomes of different policy strategies, but the Indonesian authorities in this case did not adopt or adapt these international policy lessons. Given the details of the Indonesian intervention, it is hard to understand what the intention of the policy was, or what outcomes it was supposed to achieve, if any.

In this particular case, and in others like it, it may be more instructive to consider what barriers may have arisen that did not allow design activities to occur. Colebatch (2004) argues that Southeast Asia has a unique cultural tradition of governing that does not align well with Western accounts of policy making. Other analyses (e.g. Saguin, Ramesh, and Howlett 2018) take the position that a lack of training, resources, and organizational support undermines policy making efforts, especially in developing countries. Little is known about policy analytical capacity in Indonesia. The potential for future research in this area is considerable, especially in light of the pervasive nature of the country's bureaucracy, wide-ranging issues of multi-level governance and regional influence, and the importance of global policy issues, like climate change and management of refugees, that Indonesia is increasingly being tasked by the global community to address.

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Disclaimer

The views expressed in this article are those of the authors and do not necessarily reflect the official stance of their employers.

Notes on contributors

Joshua Newman is an Associate Professor in the College of Business, Government and Law at Flinders University in Adelaide, South Australia. Joshua's research interests include most aspects of the

policy process, including transfer and learning, evidence-based policy, success and failure, and the interaction between the public and private sectors. He is the author of *Governing Public-Private Partnerships* (McGill-Queen's University Press, 2017).

Martha Nurfaiza currently works as a customs officer in the Indonesian Ministry of Finance, particularly at the Directorate General of Customs and Excise Headquarters, Jakarta. She obtained her master's degree in public administration (policy) from Flinders University, South Australia, under the Australia Awards Scholarship. Her current research interests include tobacco control policy, excise taxes, and free trade agreements.

ORCID

Joshua Newman  <http://orcid.org/0000-0002-6492-0194>

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